

TENTATIVE RULING

Case: **State of California, by and through the Department of Water
Resources v. Sierra Northern Railway et al.
Case No. CV-2022-1546**

Hearing Date: **February 27, 2026** **Department Eleven** **9:00 a.m.**

Defendant Sierra Northern Railway's ("defendant") objections to the declarations of Elizabeth Vasquez and Jamil R. Ghannam are **OVERRULED**.

Plaintiff State of California, by and through the Department of Water Resources' motion for order for prejudgment possession of property is **DENIED**. (Code Civ. Proc., § 1255.410.) Plaintiff has not shown that there is an overriding need for it to possess the property prior to the issuance of final judgment in the case and plaintiff will suffer a substantial hardship if the application for possession is denied or limited. (Cal. Const., art. I, §19, subd. (a); Code Civ. Proc., §§ 1255.410, subd. (d)(2)(C); Vasquez Decl.; Ghannam Decl.; Memo. Pts. & Auths., pp. 8-10.) The Court further finds that the hardship plaintiff will suffer if possession is denied or limited does not outweigh any hardship on defendant that would be caused by the granting of the order of prejudgment possession. (Code Civ. Proc., § 1255.410, subd. (d)(2)(D); (Hart Decl., ¶¶ 2-8, Exhibits A-E.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: State of California, by and through the Department of Water
Resources v. Whitcombe et al.
Case No. CV-2022-1955

Hearing Date: February 27, 2026 **Department Eleven** **9:00 a.m.**

Defendants John Whitcombe and Judy Whitcombe, Kenneth O'Brien and Stacy O'Brien, James W. Hirschmann, III and Laura Ann Hirschmann, Pheasant Investment Corp., Swanston Properties, Upper Swanston Ranch, G. Erling Linggi as Trustee under the will of Marilyn J. Linggi, and Wooden Decoy, LLC's (collectively, "defendants") request for judicial notice ISO joint opposition to motions for possession is **GRANTED IN PART**. (Evid. Code, §§ 452, subd. (d), 453.) While the Court takes judicial notice of Request No. 1, the Court does not take judicial notice of Request Nos. 2-10 as the records are not relevant to the Court's determination of this motion. (*People v. Rowland* (1992) 4 Cal.4th 238, 268, fn. 6; see *Malek Media Group LLC v. AXQG Corp.* (2020) 58 Cal.App.5th 817, 825; *People ex rel. Lockyer v. Shamrock Foods Co.* (2000) 24 Cal.4th 415, 422 [a precondition to the taking of judicial notice in either its mandatory or permissive form must be relevant to a material issue].)

Defendants' objections to the declaration of Elizabeth Vasquez ISO joint opposition to motions for possession are **OVERRULED**.

Defendants' supplemental request for judicial notice ISO joint opposition to motions for possession is **DENIED**. (Evid. Code, §§ 452, 453.) The documents are not relevant to the Court's determination of this motion. (*Rowland, supra*, 4 Cal.4th at p. 268, fn. 6; see *Malek Media Group LLC, supra*, 58 Cal.App.5th at p. 825; *People ex rel. Lockyer, supra*, 24 Cal.4th at p. 422.) Plaintiff State of California, by and through the Department of Water Resources' ("plaintiff") objection to defendants' supplemental request for judicial notice is **OVERRULED AS MOOT** given the Court's ruling on the supplemental request.

The Court declines to consider the supplemental declaration of Kristen Renfro filed on December 3, 2025, as it was filed after the reply deadline. (Code Civ. Proc., § 1005, subd. (b); Cal. Rules of Court, rule 3.1113(d); see also *Mendoza v. Trans Valley Transport* (2022) 75 Cal.App.5th 748, 770 [an issue not adequately raised in moving papers is forfeited]; *High Sierra Rural Alliance v. County of Plumas* (2018) 29 Cal.App.5th 102, 112 fn. 2.) As the Court is not considering the supplemental declaration of Kristen Renfro, the Court declines to rule on plaintiff's objection to the supplemental declaration.

Plaintiff's motion for order for prejudgment possession of property is **DENIED**. (Code Civ. Proc., § 1255.410.) Plaintiff has not shown that there is an overriding need for it to possess the property prior to the issuance of final judgment in the case and plaintiff will suffer a substantial hardship if the application for possession is denied or limited. (Cal. Const., art. I, § 19, subd. (a); Code Civ. Proc., §§ 1255.410, subd. (d)(2)(C); Vasquez Decl.; Ghannam Decl.; Memo. Pts. & Auths., pp. 8-10.) The Court further finds that the hardship plaintiff will suffer if possession is denied or limited does not outweigh any hardship on defendants that would be caused by the granting of the order of prejudgment possession. (Code Civ. Proc., § 1255.410, subd. (d)(2)(D); (O'Brien Decl., ¶¶ 2-22.)